

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 3000 By: Kendrix of the House
3
and
4
Bergstrom of the Senate
5
6

7 An Act relating to professions and occupations;
8 amending 59 O.S. 2021, Section 199.2, as amended by
9 Section 2, Chapter 317, O.S.L. 2025 (59 O.S. Supp.
10 2025, Section 199.2), which relates to the State
Board of Cosmetology and Barbering; recreating the
Board; extending sunset date; providing an effective
date; and declaring an emergency.

11
12 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
entire bill and insert
13

14 "An Act relating to professions and occupations;
15 amending 59 O.S. 2021, Sections 199.2, as amended by
16 Section 2, Chapter 317, O.S.L. 2025, 199.10, as
17 amended by Section 7, Chapter 282, O.S.L. 2024, and
18 199.14, as amended by Section 8, Chapter 282, O.S.L.
19 2024 (59 O.S. Supp. 2025, Sections 199.2, 199.10, and
20 199.14), which relate to the State Board of
Cosmetology and Barbering, expiration and renewal of
licenses, and fees; recreating the Board; extending
certain sunset date; establishing new membership of
Board; modifying certain membership qualification
under certain condition; requiring certain members to
have specified practical experience; conforming
language; requiring certain licenses to be issued by
Service Oklahoma after certain date; establishing
certain reinstatement fee; removing certain
reinstatement requirements; updating statutory
language; directing fixing of certain compensation;
23 amending 59 O.S. 2021, Section 4200.4, which relates
to the authority of State Board of Cosmetology and
24 Barbering; removing the Advisory Board on Massage

1 Therapy; requiring the State Board of Cosmetology and
2 Barbering to carry out certain massage therapy
3 provisions; providing an effective date; and
4 declaring an emergency.

5 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

6 SECTION 1. AMENDATORY 59 O.S. 2021, Section 199.2, as
7 amended by Section 2, Chapter 317, O.S.L. 2025 (59 O.S. Supp. 2025,
8 Section 199.2), is amended to read as follows:

9 Section 199.2. A. 1. There is hereby re-created, to continue
10 until ~~July 1, 2025~~ July 1, 2031, in accordance with the provisions
11 of the Oklahoma Sunset Law, a State Board of Cosmetology and
12 Barbering which shall be composed of eleven (11) members to be
13 appointed by the Governor and to serve at the pleasure of the
14 Governor.

15 2. ~~One member shall be appointed from each congressional
16 district and the additional members shall be appointed at-large~~

17 Beginning November 1, 2026, the membership of the Board shall be
18 as follows:

19 a. one member shall have a background in law enforcement
20 or with an organization specializing in providing
21 services to victims of human trafficking,

22 b. one member shall be a licensed massage therapist,

23 c. one member shall be a licensed cosmetologist residing
24 in Congressional District 1 of this state,

- 1 d. one member shall be a licensed cosmetologist residing
2 in Congressional District 3 of this state,
- 3 e. one member shall be a licensed cosmetologist residing
4 in Congressional District 5 of this state,
- 5 f. one member shall be a licensed barber residing in
6 Congressional District 2 of this state,
- 7 g. one member shall be a licensed barber residing in
8 Congressional District 4 of this state,
- 9 h. one member shall be a licensed barber appointed at
10 large except as provided by paragraph 3 of this
11 subsection,
- 12 i. one member shall be a lay person who shall not be a
13 member of, or be related within the second degree by
14 affinity or consanguinity to a member of, the
15 cosmetology, barber, or massage therapy industry,
- 16 j. one member shall be an administrator or owner of a
17 public cosmetology school who shall be licensed to
18 teach cosmetology, barbering, or massage therapy, and
- 19 k. one member shall be an administrator or owner of a
20 private cosmetology school who shall be licensed to
21 teach cosmetology, barbering, or massage therapy.

22 3. However, when congressional districts are redrawn, each
23 member appointed prior to July 1 of the year in which such
24 modification becomes effective shall complete the current term of

1 office and appointments made after July 1 of the year in which such
2 modification becomes effective shall be based on the redrawn
3 districts. Appointments made after July 1 of the year in which such
4 modification becomes effective shall be from any redrawn districts
5 which are not represented by a board member until such time as each
6 of the modified congressional districts ~~are~~ is represented by a
7 board member. ~~One member shall be a~~ If a sixth congressional
8 district is drawn, the barber appointed at-large at large pursuant
9 to subparagraph h of paragraph 2 of this subsection shall reside in
10 such district beginning at the appropriate time as established by
11 the provisions of this paragraph.

12 ~~3.~~ 4. At the time of appointment, the members shall be ~~citizens~~
13 United States citizens and residents of this state, at least twenty-
14 five (25) years of age, and shall be high school graduates. ~~Six~~
15 ~~members~~ Each member specified in subparagraphs b through h of
16 paragraph 2 of this subsection shall, at the time of appointment,
17 have had at least five (5) years' continuous practical experience in
18 ~~the~~ his or her respective practice ~~of cosmetology~~ in this state; ~~one~~
19 ~~member shall be appointed at-large and, at the time of the~~
20 ~~appointment, have had at least five (5) years' continuous practical~~
21 ~~experience in the practice of barbering in this state; one member~~
22 ~~shall be a lay person; one member shall be an administrator of a~~
23 ~~licensed private cosmetology school; one member shall be an~~
24 ~~administrator of a licensed barber school; and one member shall be~~

1 ~~an administrator of a public school licensed to teach cosmetology or~~
2 ~~barbering.~~

3 ~~4.~~ 5. No two members shall be graduates of the same cosmetology
4 school, nor shall they be organizers of or promote the organization
5 of any cosmetic, beauty, or hairdressers' association. Each ~~of the~~
6 ~~eight cosmetology appointees~~ appointee shall continue to be actively
7 engaged in ~~the~~ his or her respective profession ~~of cosmetology~~ while
8 serving. No two members engaged in the profession of barbering
9 shall be organizers of or promote the organization of any barbering
10 association. ~~Each of the two barbering appointees shall continue to~~
11 ~~be actively engaged in the profession of barbering while serving.~~

12 ~~5.~~ 6. If any member retires or ceases to practice his or her
13 profession during the term of membership on the Board, such terms
14 shall automatically cease and the Governor shall appoint a like-
15 qualified person to fulfill the remainder of the term.

16 B. The terms of office for Board members shall be four (4)
17 years ending June 30.

18 C. Each member shall serve until a successor is appointed and
19 qualified.

20 D. Six members of the Board shall constitute a quorum for the
21 transaction of business.

22 E. The Governor may remove any member of the Board at any time
23 at the Governor's discretion. Vacancies shall be filled by
24 appointment by the Governor for the unexpired portion of the term.

1 F. The Board shall organize by electing from its membership a
2 chair and vice chair, each to serve for a period of one (1) year.
3 The presiding officer shall not be entitled to vote upon any
4 question except in the case of a tie vote.

5 Members shall be reimbursed for their actual and necessary
6 traveling expenses as provided by the State Travel Reimbursement
7 Act.

8 G. Within thirty (30) days after the end of each fiscal year,
9 the Board shall make a full report to the Governor of all its
10 receipts and expenditures, and also a full statement of its work
11 during the year, together with such recommendations as the Board
12 deems expedient.

13 H. The Board may expend funds for suitable office space for the
14 transaction of its business. The Board shall adopt a common seal
15 for the use of the executive director in authenticating Board
16 documents.

17 I. The Board shall meet at its office for the transaction of
18 such business as may come before it on the second Monday in January,
19 March, May, July, September, and November and at such other times as
20 it may deem advisable.

21 SECTION 2. AMENDATORY 59 O.S. 2021, Section 199.10, as
22 amended by Section 7, Chapter 282, O.S.L. 2024 (59 O.S. Supp. 2025,
23 Section 199.10), is amended to read as follows:
24

1 Section 199.10. A. ~~All~~ Beginning July 1, 2027, all licenses
2 issued under the provisions of the Oklahoma Cosmetology and
3 Barbering Act ~~shall~~ may be issued by Service Oklahoma or the State
4 Board of Cosmetology and Barbering and each license shall be valid
5 for a period of one (1) year or two (2) years if issued pursuant to
6 subsection D of Section 199.14 of this title. The expiration date
7 of the license shall be the last day of the month in which the
8 applicant's birthday falls. The public display of a licensee's
9 personal residential address on the face of any license issued
10 pursuant to the provisions of the Oklahoma Cosmetology and Barbering
11 Act shall be prohibited on and after July 1, 2016, and such personal
12 address information, if publicly displayed on a valid license, may
13 be redacted by the licensee until the license is renewed and no
14 longer bears his or her personal residential address.

15 B. Applications for renewal ~~must~~ shall be made on or before the
16 last day of the month in which the applicant's birthday falls, and
17 shall be accompanied by the appropriate fees.

18 C. Any person who fails to renew the license within the
19 required time may make application for renewal at any time within
20 five (5) years from the expiration date of the license by paying the
21 regular renewal license fee and a late fee of Ten Dollars (\$10.00),
22 which becomes due two (2) months after the expiration date.

23 D. Any person who fails to renew ~~within the required time may~~
24 ~~make application with subsequent renewal and penalty fees.~~

1 ~~E. Before a person may take an examination to renew an expired~~
2 ~~license after a period of five (5) years may make application for~~
3 ~~reinstatement of the license, accompanied by a reinstatement fee of~~
4 ~~Fifty Dollars (\$50.00), and the State Board of Cosmetology and~~
5 ~~Barbering shall reinstate such license, such person shall register~~
6 ~~in a cosmetology or barber school for the given number of review~~
7 ~~hours in accordance with the following timetable and schedule based~~
8 ~~upon the type of license held.~~

9	_____ Expired Five _____ Review
10	License Type _____ Years or More _____ Hours Required
11	Basic Cosmetologist _____ 250 hours
12	Barber _____ 250 hours
13	Master Cosmetology
14	Instructor _____ 100 hours
15	Master Barber
16	Instructor _____ 100 hours
17	Facial/Esthetics
18	Instructor _____ 100 hours
19	Manicurist/Nail
20	Technician
21	Instructor _____ 100 hours
22	Manicurist _____ 100 hours
23	Facial Operator _____ 100 hours

24

1 ~~F.~~ E. Each person holding a license shall notify the Board of
2 any change in the mailing address of such person within thirty (30)
3 days after any change.

4 SECTION 3. AMENDATORY 59 O.S. 2021, Section 199.14, as
5 amended by Section 8, Chapter 282, O.S.L. 2024 (59 O.S. Supp. 2025,
6 Section 199.14), is amended to read as follows:

7 Section 199.14. A. After ~~the effective date of this act~~
8 November 1, 2024, and until June 30, 2027, the following fees shall
9 be charged by the State Board of Cosmetology and Barbering, and on
10 and after July 1, 2027, the following fees shall be charged by
11 Service Oklahoma:

12	Registration as a student.....	\$10.00
13	Examination for license.....	<u>\$50.00</u>
14	Cosmetology and Barber school license (initial).....	<u>\$400.00</u>
15	Cosmetology and Barber school license (renewal).....	<u>\$125.00</u>
16	Apprentice Registration.....	<u>\$10.00</u>
17	Renewal Advanced Operator license.....	<u>\$40.00</u>
18	Facial Operator license.....	<u>\$40.00</u>
19	Cosmetology license (chemical/nonchemical).....	<u>\$40.00</u>
20	Barber license (chemical/nonchemical).....	<u>\$40.00</u>
21	Manicurist license.....	<u>\$40.00</u>
22	Eyelash Extension Specialist certificate.....	<u>\$40.00</u>
23	Eyelash Extension Instructor certificate.....	<u>\$40.00</u>
24	Blow-Dry Styling certificate.....	<u>\$40.00</u>

1	Makeup Artist certificate.....	\$40.00
2	Facial/Esthetics Instructor license.....	\$45.00
3	Manicurist/Nail Technician Instructor license	\$45.00
4	Master Barber.....	\$40.00
5	Master Cosmetologist.....	\$40.00
6	Master Cosmetology Instructor license.....	\$65.00
7	Master Barber Instructor license.....	\$65.00
8	Cosmetology establishment license (initial).....	\$60.00
9	Cosmetology establishment license (renewal).....	\$45.00
10	Barber establishment license (initial).....	\$60.00
11	Barber establishment license (renewal).....	\$45.00
12	Nail Salon (initial).....	\$60.00
13	Nail Salon (renewal).....	\$45.00
14	Reciprocity license (initial).....	\$45.00
15	Reciprocity processing fee.....	\$45.00
16	Duplicate license (in case of loss or	
17	destruction of original).....	\$10.00
18	Notary fee.....	\$1.00
19	Certification of Records.....	\$10.00

20 B. In addition to the fees specified in subsection A of this

21 section, ~~the Board~~ Service Oklahoma shall charge a ~~total penalty of~~

22 ~~Ten Dollars (\$10.00)~~ reinstatement fee of Fifty Dollars (\$50.00), as

23 provided for in Section 199.10 of this title.

C. Any person licensed as an advanced operator prior to July 1, 1985, may renew the advanced cosmetologist license annually by payment of the fee required by this section and by being in compliance with the rules promulgated by the State Board of Cosmetology and Barbering.

D. Beginning on November 1, 2025, all licenses renewed annually in this section shall be renewed every two (2) years. The following fees shall be charged:

Registration as a student.....	\$10.00
Examination for license.....	<u>\$50.00</u>
Cosmetology and Barber school license (initial).....	<u>\$400.00</u>
Cosmetology and Barber school license (renewal).....	<u>\$250.00</u>
Apprentice Registration.....	<u>\$10.00</u>
Renewal Advanced Operator license.....	<u>\$80.00</u>
Facial Operator license.....	<u>\$80.00</u>
Cosmetology license (chemical/nonchemical).....	<u>\$80.00</u>
Barber license (chemical/nonchemical).....	<u>\$80.00</u>
Manicurist license.....	<u>\$80.00</u>
Eyelash Extension Specialist certificate.....	<u>\$80.00</u>
Eyelash Extension Instructor certificate.....	<u>\$80.00</u>
Blow-Dry Styling certificate.....	<u>\$80.00</u>
Makeup Artist certificate.....	<u>\$80.00</u>
Facial/Esthetics Instructor license.....	<u>\$90.00</u>
Manicurist/Nail Technician Instructor license.....	<u>\$45.00</u>

1	Master Barber.....	\$80.00
2	Master Cosmetologist.....	\$80.00
3	Master Cosmetology Instructor license.....	\$130.00
4	Master Barber Instructor license.....	\$130.00
5	Cosmetology establishment license (initial).....	\$120.00
6	Cosmetology establishment license (renewal).....	\$90.00
7	Barber establishment license (initial).....	\$120.00
8	Barber establishment license (renewal).....	\$90.00
9	Nail Salon (initial).....	\$120.00
10	Nail Salon (renewal).....	\$90.00
11	Reciprocity license (initial).....	\$90.00
12	Reciprocity processing fee.....	\$90.00
13	Duplicate license (in case of loss or	
14	destruction of original).....	\$10.00
15	Notary fee.....	\$1.00
16	Certification of Records.....	\$10.00

17 E. Compensation of a licensed operator, as defined in Section
18 3-102 of Title 47 of the Oklahoma Statutes, who performs functions
19 on behalf of Service Oklahoma for the State Board of Cosmetology and
20 Barbering shall be fixed by Service Oklahoma pursuant to Section 3-
21 103 of Title 47 of the Oklahoma Statutes.

22 F. Service Oklahoma shall retain Five Dollars (\$5.00) per fee
23 for each license issued for a period of one (1) year and Ten Dollars
24 (\$10.00) per fee for each license issued for a period of two (2)

1 years. The remaining amount of such fees shall be remitted to the
2 Board.

3 G. On or before January 1, 2028, the State Board of Cosmetology
4 and Barbering shall remove two employee licensing positions, and
5 such positions shall be replaced by two employee facility inspector
6 positions.

7 SECTION 4. AMENDATORY 59 O.S. 2021, Section 4200.4, is
8 amended to read as follows:

9 Section 4200.4. A. The State Board of Cosmetology and
10 Barbering is hereby authorized to adopt and promulgate rules
11 pursuant to the Administrative Procedures Act that are necessary for
12 the implementation and enforcement of the Massage Therapy Practice
13 Act, including, but not limited to, qualifications for licensure,
14 renewals, reinstatements, and continuing education requirements.

15 B. The State Board of Cosmetology and Barbering is hereby
16 empowered to perform investigations, to require the production of
17 records and other documents relating to practices regulated by the
18 Massage Therapy Practice Act, and to seek injunctive relief.

19 ~~C. There is hereby created an Advisory Board on Massage~~
20 ~~Therapy. The Advisory Board on Massage Therapy shall assist the~~
21 ~~Board in carrying~~ Upon the effective date of this act, the State
22 Board of Cosmetology and Barbering shall carry out the provisions of
23 this section regarding the qualifications, examination,
24 registration, regulation, and standards of professional conduct of

1 massage therapists. ~~The Advisory Board on Massage Therapy shall~~
2 ~~consist of five (5) members to be appointed by the Governor for~~
3 ~~four-year terms as follows:~~

4 1. ~~Three members who shall be licensed massage therapists and~~
5 ~~have practiced in Oklahoma for not less than three (3) years prior~~
6 ~~to their appointment;~~

7 2. ~~One member who shall be an administrator or faculty member~~
8 ~~of a nationally accredited school of massage therapy; and~~

9 3. ~~One who shall be a citizen member.~~

10 D. ~~The fee for any license issued between the effective date of~~
11 ~~this act and May 1, 2017, shall be Twenty-five Dollars (\$25.00).~~
12 ~~The fee or renewal fee for any massage therapy license issued after~~
13 ~~May 1, 2017, shall be Fifty Dollars (\$50.00) per year. A duplicate~~
14 ~~license fee shall be Ten Dollars (\$10.00).~~

15 SECTION 5. This act shall become effective July 1, 2026.

16 SECTION 6. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval."

1 Passed the Senate the 29th day of April, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 3000

By: Kendrix of the House

3 and

4 Bergstrom of the Senate

5
6
7 An Act relating to professions and occupations;
8 amending 59 O.S. 2021, Section 199.2, as amended by
9 Section 2, Chapter 317, O.S.L. 2025 (59 O.S. Supp.
10 2025, Section 199.2), which relates to the State
11 Board of Cosmetology and Barbering; recreating the
12 Board; extending sunset date; providing an effective
13 date; and declaring an emergency.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 7. AMENDATORY 59 O.S. 2021, Section 199.2, as
16 amended by Section 2, Chapter 317, O.S.L. 2025 (59 O.S. Supp. 2025,
17 Section 199.2), is amended to read as follows:

18 Section 199.2. A. 1. There is hereby re-created, to continue
19 until July 1, ~~2025~~ 2031, in accordance with the provisions of the
20 Oklahoma Sunset Law, a State Board of Cosmetology and Barbering
21 which shall be composed of eleven (11) members to be appointed by
22 the Governor and to serve at the pleasure of the Governor.

23 2. One member shall be appointed from each congressional
24 district and the additional members shall be appointed at-large.

However, when congressional districts are redrawn, each member

1 appointed prior to July 1 of the year in which such modification
2 becomes effective shall complete the current term of office and
3 appointments made after July 1 of the year in which such
4 modification becomes effective shall be based on the redrawn
5 districts. Appointments made after July 1 of the year in which such
6 modification becomes effective shall be from any redrawn districts
7 which are not represented by a board member until such time as each
8 of the modified congressional districts are represented by a board
9 member. One member shall be a barber appointed at-large.

10 3. At the time of appointment, the members shall be citizens of
11 this state, at least twenty-five (25) years of age, and shall be
12 high school graduates. Six members shall, at the time of
13 appointment, have had at least five (5) years' continuous practical
14 experience in the practice of cosmetology in this state; one member
15 shall be appointed at-large and, at the time of the appointment,
16 have had at least five (5) years' continuous practical experience in
17 the practice of barbering in this state; one member shall be a lay
18 person; one member shall be an administrator of a licensed private
19 cosmetology school; one member shall be an administrator of a
20 licensed barber school; and one member shall be an administrator of
21 a public school licensed to teach cosmetology or barbering.

22 4. No two members shall be graduates of the same cosmetology
23 school, nor shall they be organizers of or promote the organization
24 of any cosmetic, beauty, or hairdressers' association. Each of the

1 eight cosmetology appointees shall continue to be actively engaged
2 in the profession of cosmetology while serving. No two members
3 engaged in the profession of barbering shall be organizers of or
4 promote the organization of any barbering association. Each of the
5 two barbering appointees shall continue to be actively engaged in
6 the profession of barbering while serving.

7 5. If any member retires or ceases to practice his or her
8 profession during the term of membership on the Board, such terms
9 shall automatically cease and the Governor shall appoint a like-
10 qualified person to fulfill the remainder of the term.

11 B. The terms of office for Board members shall be four (4)
12 years ending June 30.

13 C. Each member shall serve until a successor is appointed and
14 qualified.

15 D. Six members of the Board shall constitute a quorum for the
16 transaction of business.

17 E. The Governor may remove any member of the Board at any time
18 at the Governor's discretion. Vacancies shall be filled by
19 appointment by the Governor for the unexpired portion of the term.

20 F. The Board shall organize by electing from its membership a
21 chair and vice chair, each to serve for a period of one (1) year.
22 The presiding officer shall not be entitled to vote upon any
23 question except in the case of a tie vote.
24

1 Members shall be reimbursed for their actual and necessary
2 traveling expenses as provided by the State Travel Reimbursement
3 Act.

4 G. Within thirty (30) days after the end of each fiscal year,
5 the Board shall make a full report to the Governor of all its
6 receipts and expenditures, and also a full statement of its work
7 during the year, together with such recommendations as the Board
8 deems expedient.

9 H. The Board may expend funds for suitable office space for the
10 transaction of its business. The Board shall adopt a common seal
11 for the use of the executive director in authenticating Board
12 documents.

13 I. The Board shall meet at its office for the transaction of
14 such business as may come before it on the second Monday in January,
15 March, May, July, September, and November and at such other times as
16 it may deem advisable.

17 SECTION 8. This act shall become effective July 1, 2026.

18 SECTION 9. It being immediately necessary for the preservation
19 of the public peace, health or safety, an emergency is hereby
20 declared to exist, by reason whereof this act shall take effect and
21 be in full force from and after its passage and approval.

1 Passed the House of Representatives the 12th day of March, 2026.

2
3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

7
8 _____
9 Presiding Officer of the Senate